

OSHA Letters of Interpretation - Part 1904

2021-01-08 - Reporting two related reportable events.

Source: <https://www.osha.gov/laws-regs/standardinterpretations/2021-01-08>

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Thank you for your letter to the Occupational Safety and Health Administration (OSHA) regarding the recordkeeping regulation contained in 29 CFR Part 1904 – Recording and Reporting Occupational Injuries and Illnesses. Specifically, you ask OSHA to clarify whether two related reportable events under 29 CFR 1904.39, “Reporting fatalities, hospitalizations, amputations, and losses of an eye,” should each be cited for the purposes of OSHA recordkeeping, or whether a company may report only the initial event.

In employee is seriously injured and is admitted to the hospital. The company reports the in-patient hospitalization to OSHA within 24 hours of learning about it, in accordance with section 1904.39(a)(2). While hospitalized, the employee undergoes surgery. Five days after the surgery, the employee passes away due to this work-related injury. Based upon this scenario, is the company required to make a “second report” of the initial injury that resulted in the fatality?

An employee's arm is severely injured at work, and the employee is admitted to the hospital. The company reports the in-patient hospitalization to OSHA within 24 hours of learning about it, in accordance with section 1904.39(a)(2). While hospitalized, the employee's arm is amputated due to the work-related injury. The amputation occurs within 24 hours of the work-related injury. Based upon this scenario, is the company is required to make a “second report” of the initial injury that resulted in an amputation?

It is not OSHA's intention that related events, each of which are reportable under section 1904.39, be reported twice. If the in-patient hospitalization results in an amputation or a fatality, the employer does not need to report the second event as long as the employer initially reported the in-patient hospitalization within the 24-hour period. As OSHA explained in the preamble to section 1904.39, the agency made amputations reportable because data reflect that the majority of amputations do not involve in-patient hospitalizations. 79 Fed. Reg. 56130, 56146 (Sept. 18, 2014). However, OSHA specifically noted, “for amputations involving in-patient hospitalization, employers will only have to make a single report.”

Finally, even though employers do not have to report the second event, they still need to record the most serious outcome for each case on their OSHA injury and illness records, if they are required to keep such records.

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Directorate of Technical Support and Emergency Management

2015-04-15 - General requirements that applies to workers who drive heavy trucks and other commercial motor vehicles CMV on construction sites

Source: <https://www.osha.gov/laws-regs/standardinterpretations/2015-04-15>

General requirements that applies to workers who drive heavy trucks and other commercial motor vehicles CMV on construction sites

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Thank you for your letter to the Occupational Safety and Health Administration (OSHA), which we received February 2, 2015. Because your letter involved construction issues, your inquiry was forwarded to OSHA's Directorate of Construction. You asked about qualifications for workers who drive heavy trucks and other commercial motor vehicles (CMV) on construction sites.

OSHA has issued a general requirement that applies to workers at construction sites, including drivers of heavy trucks and other CMV, in its Construction Standards at Subpart C - General Safety and Health Provisions:

29 CFR 1926.20(b)(4) The employer shall permit only those employees qualified by training or experience to operate equipment and machinery.

You can access this standard on OSHA's website at:

http://www.osha.gov/pls/oshaweb/owadisp.show_document?p_table=STANDARDS&p_id=10606.

Employers who are transporting hazardous materials must comply with applicable U.S. Department of Transportation (DOT) HAZMAT regulations. For more information on HAZMAT transportation regulations, you may wish to visit the U.S. DOT, Pipeline and Hazardous Materials Safety Administration (PHMSA) website at <http://www.phmsa.dot.gov>. The PHMSA has responsibility for the safe movement of HAZMAT by all modes of transportation.

Washington State operates its own occupational safety and health program under a plan approved and monitored by OSHA. The Washington State Plan, which is administered by the Department of Labor and Industries (DL&I), Division of Occupational Safety and Health (DOSH), adopts and enforces standards and investigates safety and health concerns in workplaces throughout the state. State Plans are required to have standards and enforcement programs that are at least as effective as OSHA's, but may have different or additional requirements. You can find more information about the Washington State Plan at its website: <http://www.lni.wa.gov/Safety/default.asp>.

There is a wealth of information on OSHA's website, www.osha.gov, including the following webpages that deal with safe truck driving and the trucking industry:

<https://www.osha.gov/SLTC/motorvehiclesafety/construction.html>

https://www.osha.gov/SLTC/trucking_industry/index.html

In addition, the following provide links to OSHA's worker rights, complaint, and whistleblower webpages:

<http://www.osha.gov/as/opa/worker/complain.html>

http://www.whistleblowers.gov/complaint_page.html

Thank you for your interest in safety and health. I hope you find this information helpful. If you have any further questions, feel free to contact the Directorate of Construction at (202) 693-2020.

2004-01-13 - Determining work-relatedness when the work event or exposure is only one of the discernable causes; not the sole or predominant cause.

Source: <https://www.osha.gov/laws-regs/standardinterpretations/2004-01-13>

Determining work-relatedness when the work event or exposure is only one of the discernable causes; not the sole or predominant cause.

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Thank you for your comments pertaining to the Occupational Safety and Health Administration's (OSHA) Injury and Illness Recording and Reporting requirements contained in 29 CFR Part 1904. Please accept my apology for the delay in our response.

Specifically, you ask OSHA to clarify in each scenario you describe; whether the employee who sustains an injury or illness while he or she is engaged in an activity such as walking or bending is considered work-related. As you note, a case is presumed work-related under the recordkeeping rule if an event or exposure in the work environment is a discernable cause of the injury or illness. The work event or exposure need only be one of the discernable causes; it need not be the sole or predominant cause. The preamble to the rule contains a passage that is relevant in determining whether this presumption applies in the scenarios in your letter. The preamble states, in relevant part, as follows:

In applying [the presumption of work-relatedness], the question employers must answer is whether there is an identifiable event or exposure which occurred in the work environment and resulted in the injury or illness. "Thus, if an employee trips while walking across a level factory floor, the resulting injury is considered work-related under the geographic presumption because the precipitating event - the tripping accident - occurred in the workplace. The case is work-related even if the employer cannot determine why the employee tripped, or whether any particular workplace hazard caused the accident to occur."

In each of the eight scenarios in your letter, the activity engaged in by the employee at the time of the injury (walking, tripping, climbing a staircase, sneezing, bending down) is an "event" which would trigger application of the presumption. In the absence of evidence to overcome the presumption, the injury is work-related. Thus, in the absence of evidence to overcome the presumption, an ankle injury caused by a trip that occurred while the employee was walking down a level seamless hallway at work is work-related, regardless of whether the accident is attributable to a defect in the hall. By the same reasoning, if the activity of walking down a hallway caused the employee's knee to buckle or to sprain the ankle, the injury is work-related. If an injury or illness did not result from an identifiable event or exposure in the work environment, but only manifested itself during work, the injury is not work-related. For example, if the employee had a non-occupational event or exposure, and there is no evidence of a work-related event or exposure that was a cause of the injury or illness, the injury should not be recorded.

You also ask whether the determination of work-relationship would be affected by the existence of a pre-existing condition, whether work-related or non-work-related, affecting the same body part that is injured. Under the rule, a pre-existing condition is an injury or illness resulting solely from a non-work-related event or exposure. If an employee's pre-existing condition is worsened as a result of an event or exposure at work, the case is not work-related unless the work event or exposure "significantly aggravated" the preexisting condition (i.e., the case meets the recording criteria contained in Section 1904.5(b)(4). If the employee with a pre-existing work-related injury to a body part suffers a subsequent work-related injury of the same type to the same body part, the subsequent injury is recordable (assuming the general recording criteria are met) if it is a "new case" as discussed in Section 1904.6.

Thank you for your interest in occupational safety and health. We hope you find this information helpful. OSHA requirements are set by statute, standards and regulations. Our interpretation letters explain these requirements and how they apply to particular circumstances, but they cannot create additional employer obligations. This letter constitutes OSHA's interpretation of the requirements discussed. Note that our enforcement guidance may be affected by changes to OSHA rules. In addition, from time to time we update our guidance in response to new information. To keep apprised of such developments, you can consult OSHA's website at <http://www.osha.gov> . If you have any further questions, please contact the Division of Recordkeeping Requirements, at 202-693-1702.

2006-08-03 - Recording an injury when physician recommends restriction but no restricted work is available.

Source: <https://www.osha.gov/laws-regs/standardinterpretations/2006-08-03>

Recording an injury when physician recommends restriction but no restricted work is available.

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Thank you for your March 24, 2006 letter to the Occupational Safety and Health Administration (OSHA) regarding the Injury and Illness Recording and Reporting Requirements contained in 29 CFR Part 1904. Specifically, you requested information on how to record a work-related injury when a physician recommends a work restriction but the employer sends the employee home because no restricted work is available.

Scenario: An employee is injured at work and placed on restricted work by a physician. The employer is not able to accommodate the employee in a work restriction and sends the employee home. Should the employer follow the physician's mandate and record the injury as restricted work, or because no restricted work was available and the employee was sent home, must the injury be recorded as days away from work?

Response: Section 1904.7 provides that a work-related injury or illness must be recorded if it results in death, days away from work, restricted work or transfer to another job, medical treatment beyond first aid, loss of consciousness, or a significant injury or illness diagnosed by a physician or other licensed health care professional.

Under the OSHA recordkeeping system, the employer has the ultimate responsibility for making good-faith recordkeeping determinations regarding an injury and/or illness. Employers must decide if and how a particular case should be recorded and their decision must not be an arbitrary one. In addition, determinations concerning how and when to restrict an employee's work activities can only be made by the employer.

The preamble to the 2001 final rule addressing OSHA's revised injury and illness recordkeeping requirements in Part 1904 states:

"The final rule's restricted work provisions also clarify that work restriction must be imposed by the employer or be recommended by a health care professional before the case is recordable. Only the employer has the ultimate authority to restrict an employee's work, so the definition is clear that, although a health care professional may recommend the restriction, the employer makes the final determination of whether or not the health care professional's recommended restriction involves the employee's routine functions. Restricted work assignments may involve several steps: a Health Care Professional's (HCP) recommendation, or employer's determination to restrict the employee's work, the employer's analysis of jobs to determine whether a suitable job is available, and assignment of the employee to that job. All such restricted work cases are recordable, even if the health care professional allows some discretion in defining the type or duration of the restriction..." See 66 Federal Register (page 5980, 3rd column), January 19, 2001.

In the above scenario, the physician determined that the employee should be placed on a work restriction, but the employer was not able to accommodate the employee and the employer sent the employee home. Under Part 1904, because the employer has the ultimate responsibility to determine if and how a case should be recorded, the case should be designated as "Days away from work."

You also inquired about "publishing a book that would be easy to refer to in answering recordkeeping questions." OSHA has a new publication called The OSHA Recordkeeping Handbook on OSHA's Recordkeeping homepage, <http://www.osha.gov/recordkeeping>. The OSHA Recordkeeping Handbook is a compendium of existing agency

approved policy, including the 2001 Recordkeeping rule (Regulatory text and relevant decision discussion from the Preamble to the rule), Frequently Asked Questions, and the Letters of Interpretation. The following Letter of Interpretation is analogous to your question above, 06/23/2006 - No Restricted Work Available, <http://www.osha.gov/recordkeeping/RKinterpretations.html>.

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2024-10-22 - Is the use of paraffin wax as a form of topical heat application considered medical treatment beyond first aid for OSHA recordkeeping purposes

Source: <https://www.osha.gov/laws-regs/standardinterpretations/2024-10-22>

Is the use of paraffin wax as a form of topical heat application considered medical treatment beyond first aid for OSHA recordkeeping purposes

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Thank you for your letter to the Occupational Safety and Health Administration (OSHA) regarding the recordkeeping regulation contained in 29 CFR Part 1904 - Recording and Reporting Occupational Injuries and Illnesses. Specifically, you asked whether the use of paraffin wax as a form of topical heat application is considered medical treatment beyond first aid for OSHA recordkeeping purposes.

In your letter, you state that the application of paraffin wax is a well-known reputable source among the medical community, similar to the use of heat wraps and Epson soaks in warm water. You indicate that thermal modalities may help to relieve stiff muscles and joints by improving circulation and increasing blood flow. You also state that the application of paraffin wax does not require formal training or specialized degrees, and that paraffin wax may be purchased over the counter and is often applied in spas and salons.

Section 1904.7(a) of OSHA's recordkeeping regulation requires employers to record work-related injuries and illnesses that result in medical treatment beyond first aid. Section 1904.7(b)(5)(I) states that medical treatment means "the management and care of a patient to combat disease or disorder." Under Part 1904, medical treatment does not include "first aid" as defined in section 1904.7(b)(5)(ii). Section 1904.7(b)(5)(iii) goes on to state that the list of treatments in section 1904.7(b)(5)(ii) is a comprehensive list of first aid treatments. Any treatment not included on this list is not considered first aid for OSHA recordkeeping purposes.

The regulation at section 1904.7(b)(5)(ii)(E) specifically states that the use of hot and cold therapy to treat a work-related injury or illness is first aid for purposes of OSHA recordkeeping.

OSHA has determined that the use of paraffin wax to treat a work-related injury or illness is a heat treatment within the meaning of "hot or cold therapy" in section 1904.7(b)(5)(ii)(E) because the warm temperature of the paraffin wax in this application is used to relieve pain by increasing blood flow, reducing joint stiffness, and relaxing muscles. As such, when heated paraffin wax is used alone to treat a work-related injury or illness, the treatment is considered first aid, and the injury or illness is not recordable. Please note that the use of such treatments is considered first aid regardless of the number of times paraffin wax is applied, where it is applied, or the injury or illness to which it is applied.

However, in many cases, heated paraffin wax is used in combination with other methods to treat work-related injuries and illnesses. For example, paraffin wax may be used along with physical therapy, exercise, or prescription medication. In such cases, the use of paraffin wax, in combination with another method that meets the general recording criteria, such as medical treatment beyond first aid, job transfer, restricted work activity, or days away from work, would make the case recordable. In situations where a worker sustains a significant injury or illness, the case almost always involves some other form of medical treatment (such as prescription drugs, physical therapy, or chiropractic treatment), restricted work, or days away from work. See, OSHA's discussion of hot and cold therapies in the preamble to OSHA's January 19, 2001, Occupational Injury and Illness Recording and Reporting Requirements final rule, published in the Federal Register at 66 FR 5916, 5990.

The State of Indiana operates its own occupational safety and health program under a plan approved and monitored by OSHA. Indiana Division of Occupational Safety and Health (IOSHA) adopts and enforces standards and investigates safety and health concerns in workplaces throughout the state. State Plans are required to have standards and enforcement programs that are at least as effective as OSHA's but may have different or additional requirements.

You may wish to contact Indiana OSHA (IOSHA) at:

Indiana Occupational Safety and Health Administration (IOSHA)

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Directorate of Technical Support and Emergency Management

2026-01-20 - Recordability of workplace injuries resulting from personal rechargeable lithium-ion batteries.

Source: <https://www.osha.gov/laws-regs/standardinterpretations/2026-01-20>

Recordability of workplace injuries resulting from personal rechargeable lithium-ion batteries.

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Thank you for your letter to the Occupational Safety and Health Administration (OSHA) regarding the recordkeeping regulation contained in 29 CFR Part 1904 - Recording and Reporting Occupational Injuries and Illnesses. Specifically, you ask several questions concerning whether injuries in the workplace resulting from the use of personal rechargeable lithium-ion batteries are work-related for purposes of OSHA recordkeeping.

Scenario: In your letter, you describe a scenario in which employees bring rechargeable lithium-ion batteries from home to the workplace for use in e-cigarettes, and that are not used in any equipment or device related to employee work duties. You also state that, in this scenario, the battery terminals are unprotected and the employee or employees improperly carry these batteries in their pants pocket, a fire is sparked by the batteries, and that the fire results in employee injury.

Question 1: Does the exception to work-relatedness in 29 CFR 1904.5(b)(3) apply to the scenario above because it is not obvious whether the precipitating event occurred in the work environment or occurred away from work?

Response: No, section 1904.5(b)(3) of OSHA's recordkeeping regulation does not apply in this scenario, assuming that the employee was at your workplace during assigned work hours and present as a condition of employment.

OSHA's recordkeeping regulation at 29 CFR 1904.5(a) states, the employer "must consider an injury or illness to be work-related if an event or exposure in the work environment either caused or contributed to the resulting condition or significantly aggravated a pre-existing injury or illness. Work-relatedness is presumed for injuries and illnesses resulting from events or exposures occurring in the work environment, unless an exception in § 1904.5(b)(2) specifically applies." Section 1904.5(b)(1) defines the work environment as "the establishment and other locations where one or more employees are working or are present as a condition of their employment."

OSHA's approach to work-relationship in the recordkeeping regulation reflects two important principles. The first is that work need only be a causal factor for an injury or illness to be work-related. The regulation requires neither precise quantification of the occupational cause, nor an assessment of the relative weight of occupational and non-occupational causal factors. If work is a tangible, discernible causal factor, the injury or illness is work-related. The second principle is that a "geographic presumption" applies for injuries and illnesses caused by events or exposures that occur in the work environment. These injuries and illnesses must be considered work-related unless an exception to the presumption in section 1904.5(b)(2) specifically applies. Accordingly, the presumption encompasses cases in which an injury or illness results from an event at work that is outside the employer's control, such as a lightning strike, or involves activities that occur at work but that are not directly related to production, such as horseplay. See, the preamble to OSHA's January 19, 2001, Occupational Injury and Illness Recording and Reporting Requirements final rule, published in the Federal Register at 66 FR 5916, 5929. See also, e.g., OSHA's May 17, 2023, letter of interpretation to Mr. Travis Vance.

In addition, OSHA recognizes that injury and illness rates do not necessarily indicate an employer's lack of interest in safety and health. Both the Note to Subpart A of the recordkeeping regulation (29 CFR §1904.0) and the Overview to OSHA Form 300, Log of Work-Related Injuries and Illnesses (

<http://osha.gov/recordkeeping/new-osha300form1-1-04.pdf>) expressly state that recording a case does not indicate that an employer or employee was at fault or that an OSHA standard was violated.

Section 1904.5(b)(3) addresses the determination of work-relatedness only under circumstances "when it is not obvious whether the precipitating event or exposure occurred in the work environment or occurred away from work." In these situations, the regulation requires the employer to evaluate the employee's work duties and environment to decide whether it is more likely than not that one or more events or exposures in the work environment either caused or contributed to the resulting condition or significantly aggravated a pre-existing injury or illness.

Based on the scenario in your letter, the event that caused the injury to an employee is the fire that occurred at the workplace. Assuming that, at the time of the injury, if the employee was present in the worksite as a condition of their employment, it is "obvious" that the event occurred in the work environment and section 1904.5(b)(3) would not apply. In such cases, the injury must be considered work-related unless an exception in section 1904.5(b)(2) specifically applies. With regard to the improper carrying of lithium-ion batteries, the nature of the activity which the employee engaged in at the time of the event or exposure, the degree of employer control over the employee's activity, the preventability of the incident or the concept of fault do not affect the determination of work relationship.

Question 2: In the above scenario, is the precipitating event the improper carrying of the lithium-ion batteries, or is the precipitating event the fire?

Response: In the above scenario, the precipitating event is the fire in the workplace that injured the employee. In other words, the fire was the identifiable event that the burn injury resulted from. See OSHA's discussion of precipitating events in the preamble to the 2001 final rule at 66 FR at 5959. However, as previously discussed, section 1904.5(b)(3) is inapplicable in your scenario.

Question 3: Would the exception to work-relatedness at section 1904.5(b)(2)(iv) apply in this scenario because the injury is solely the result of an employee bringing something personal on-site for the employee's personal use?

Response: No, the exception in Section 1904.5(b)(2)(iv) related to eating, drinking, or preparing food or drink would not apply to the scenario you describe.

Section 1904.5(b)(2)(iv) provides that injuries and illnesses will not be considered work-related if they are solely the result of an employee eating, drinking, or preparing food or drink for personal consumption (whether bought on the premises or brought in). The injury described in your letter does not fall within the exception in section 1904.5(b)(2)(iv) because, at the time of the injury, the employee was not eating, drinking or preparing food or drink for personal consumption.

In the preamble to the 2001 recordkeeping final rule, OSHA made clear that the eight exceptions listed in section 1904.5(b)(2) are the only exceptions permitted by the regulation to the geographic presumption set forth in section 1904.5(a). See, 66 FR at 5950. As such, OSHA interprets the exceptions listed in section 1904.5(b)(2) narrowly and the exceptions are applied to a given situation only when all conditions within a specific exception are met.

In addition, the issue of whether to record injuries and illnesses resulting from employees conducting personal tasks in the work environment was directly addressed by OSHA in the 2001 rulemaking. After careful consideration of the rulemaking record, OSHA concluded that it would be difficult in many cases for employers to distinguish between work activities and personal activities that occurred during the workday, and that the nature of the activity the employee was engaged in at the time of the event or exposure is not relevant in determining work-relatedness, except in those limited circumstances addressed by the exceptions in section 1904.5(b)(2). See, 66 FR at 5954. Accordingly, the recordkeeping regulation contains no general exception for purposes of determining work-relatedness for cases involving employees engaged in purely personal tasks.

Finally, note that the recordkeeping regulation does include a specific exception at section 1904.5(b)(2)(v) that allows employers to exclude injuries and illnesses that are solely the result of an employee doing personal tasks

unrelated to their employment at the establishment when these tasks are conducted outside of the employee's assigned working hours. For purposes of the exception in section 1904.5(b)(2)(v), "assigned working hours" means those hours the employee is actually expected to work, including overtime, and "personal tasks" are those tasks that are unrelated to the employee's job. See, OSHA's Frequently Asked Question (FAQ) 5-4 and 5-5. Based on the scenario you describe, there is no indication that the injured employee was either carrying or using lithium batteries in the work environment outside assigned working hours. As a result, the exception in section 1904.5(b)(2)(v) would not apply to your scenario.

Question 4: Does the personal grooming exception in section 1904.5(b)(2)(vi) apply under the facts described above?

Response: No. The exception in section 1904.5(b)(2)(vi) related to personal grooming also would not apply to the scenario you describe. Section 1904.5(b)(2)(vi) provides that a case will not be considered work-related if the injury or illness is solely the result of personal grooming, self-medication for a non-work-related condition, or is intentionally self-inflicted. This exception allows the employer to exclude cases related to personal hygiene, self-administered medications and intentional self-inflicted injuries, such as attempted suicide. For example, a burn injury from a hair dryer used at work to dry the employee's hair would not be work-related. Similarly, a negative reaction to a medication brought from home by the employee to treat a non-work condition would not be considered a work-related illness, even though it first manifested at work. See, 66 FR at 5951.

A burn injury resulting from carrying a lithium-ion battery for purposes of e-cigarette use in the work environment does not fall within the exception in section 1904.5(b)(2)(vi) because it does not involve personal grooming, self-medication for a non-work-related condition, or an intentionally self-inflicted injury. Again, as noted above, the eight exceptions listed in section 1904.5(b)(2) are the only exceptions to the presumption of work-relatedness in section 1904.5(a) and, in order for a specific exception to apply, the case must meet all conditions within that exception.

Question 5: Does it make any difference if the injury is caused (or was contributed to) by the lithium ion battery being co-mingled with an employer-provided item, such as a metallic key used at work?

Response: No. For reasons described above, none of the exceptions to work-relatedness in section 1904.5(b)(2) apply to the scenario you describe. Therefore, for purposes of determining work-relatedness, it makes no difference if the employee's injury was caused by the lithium-ion battery being co-mingled with an employer provided item used at work.

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Directorate of Technical Support and Emergency Management

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